

IN THE SENATE

SENATE BILL NO. 1259

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO JUVENILE CORRECTIONS; AMENDING SECTION 20-516, IDAHO CODE, TO
AUTHORIZE JUVENILE PROBATION OFFICERS TO ARREST A JUVENILE PROBATIONER
WITHOUT A WARRANT FOR PROBATION VIOLATIONS IN CERTAIN INSTANCES AND TO
MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN
EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 20-516, Idaho Code, be, and the same is hereby
amended to read as follows:

20-516. APPREHENSION AND RELEASE OF JUVENILES -- DETENTION. (1) A
peace officer may take a juvenile into custody, or a private citizen may
detain a juvenile until the juvenile can be delivered forthwith into the
custody of a peace officer, without order of the court:

(a) When he has reasonable cause to believe that the juvenile has com-
mitted an act that would be a misdemeanor or felony if committed by an
adult; or

(b) When in the presence of a peace officer or private citizen the ju-
venile has violated any local, state, or federal law or municipal ordi-
nance; or

(c) When there are reasonable grounds to believe the juvenile has com-
mitted a status offense. Status offenses are truancy, running away from
or being beyond the control of parents, guardian, or legal custodian,
alcohol age violations ~~under~~ pursuant to section 18-1502(e), Idaho
Code, and curfew violations. Status offenders shall not be placed in
any jail facility, including juvenile detention centers, but instead
may be placed in juvenile shelter care facilities, except in the case
of runaways, when there is a specific detention request from a foreign
jurisdiction to hold the juvenile pending transportation arrangements,
and a peace officer may, in his discretion, notify the parent, guardian,
or legal custodian. In the event of an alcohol age infraction ~~under~~
pursuant to section 18-1502(e), Idaho Code, the status offense under
this section shall be in addition to the infraction.

(2) A peace officer may take a juvenile into custody upon a written or-
der or warrant signed by a judge. The judge may issue the order or warrant af-
ter finding that there is reasonable cause to believe that the juvenile comes
within the purview of this chapter. Such taking into custody shall not be
deemed an arrest. Jurisdiction of the court shall attach from the time the
juvenile is taken into custody. When an officer takes a juvenile into cus-
tody, he shall notify the parent, guardian, or custodian of the juvenile as
soon as possible. Unless otherwise ordered by the court, or unless it ap-
pears to the officer taking the juvenile into custody that it is contrary to
the welfare of society or the juvenile, such juvenile shall be released to

1 the custody of his parent or other responsible adult upon written promise,
 2 signed by such person, to bring the juvenile to the court at a stated time.
 3 Such written promise shall be submitted to the court as soon as possible. If
 4 such person fails to produce the juvenile as agreed, or upon notice from the
 5 court, a summons for such person may be issued by the court and a warrant may
 6 be issued for apprehension of the juvenile.

7 (3) In counties where there are juvenile probation officers, such of-
 8 icers shall have the same authority exercised by misdemeanor probation
 9 officers pursuant to section 20-227(5), Idaho Code, to arrest a juvenile
 10 probationer without a warrant for violations of juvenile probation occur-
 11 ring in the officer's presence. A juvenile probation officer may execute
 12 any court-issued warrant, probation violation warrant, or other order of
 13 the court directing that a juvenile probationer be taken into custody for an
 14 alleged or adjudicated violation of probation. For juvenile probationers
 15 taken into custody pursuant to this or any other applicable section of Idaho
 16 Code, a juvenile probation officer may transport the juvenile probationer to
 17 or between courts, detention facilities, treatment programs, placements, or
 18 counties, as authorized by the court. The authority granted pursuant to the
 19 provisions of this subsection shall be limited to enforcement of existing
 20 probation conditions and juveniles who are subject to such orders and condi-
 21 tions of probation.

22 ~~(3)~~ (4) A juvenile taken into custody may be fingerprinted and pho-
 23 tographed. Any fingerprints and photographs taken shall be forwarded as
 24 provided in subsection ~~(8)~~ (9) of this section. If the court finds good
 25 cause, it may order any fingerprints and photographs expunged.

26 ~~(4)~~ (5) When a juvenile is not released, ~~he~~ the juvenile shall be taken
 27 forthwith to the court or place of detention specified by the court. The ju-
 28 venile shall, not later than twenty-four (24) hours, excluding Saturdays,
 29 Sundays, and holidays, be brought before the court for a detention hearing
 30 to determine where the juvenile will be placed until the next hearing. Sta-
 31 tus offenders shall not be placed in any jail facility, including juvenile
 32 detention centers, but instead may be placed in juvenile shelter care facil-
 33 ities. Placements may include but are not limited to the following:

- 34 (a) Parents of the juvenile;
- 35 (b) Relatives of the juvenile;
- 36 (c) Foster care;
- 37 (d) Group care;
- 38 (e) A juvenile detention center, except in the case of a status of-
- 39 fender; or
- 40 (f) Diversion programs.

41 ~~(5)~~ (6) The person in charge of a detention center shall give immediate
 42 notice to the court that the juvenile is in his custody.

43 ~~(6)~~ (7) No juvenile shall be held in detention longer than twenty-four
 44 (24) hours, excluding Saturdays, Sundays, and holidays, unless a petition
 45 has been filed and the court has signed the detention order.

46 ~~(7)~~ (8) As soon as a juvenile is detained by court order, ~~his~~ the juve-
 47 nile's parents, guardian, or legal custodian shall be informed by notice in
 48 writing, on forms prescribed by the court, that ~~they~~ the juvenile may have a
 49 prompt hearing regarding release or detention.

1 ~~(8)~~ (9) A juvenile taken into detention for an offense shall be finger-
2 printed and photographed. Fingerprints and photographs taken of juveniles
3 shall be forwarded to the appropriate law enforcement agency and filed with
4 the bureau of criminal identification of the Idaho state police, which shall
5 create a juvenile offender fingerprint file and enter the fingerprint data
6 into the automated fingerprint identification system. If the court finds
7 good cause, it may order the fingerprints and photographs of the juvenile of-
8 fender expunged.

9 ~~(9)~~ (10) Peace officers' records of juveniles shall be kept separate
10 from records of adults and shall be subject to disclosure according to chap-
11 ter 1, title 74, Idaho Code.

12 SECTION 2. An emergency existing therefor, which emergency is hereby
13 declared to exist, this act shall be in full force and effect on and after
14 July 1, 2026.